PATRICIA NONSIKELELO NYABADZA

Versus

MINISTER OF LANDS, AGRICULTURE, WATER, FISHERIES AND RURAL DEVELOPMENT

And

MAHSEER INVESTMENT (PVT) LIMITED

HIGH COURT OF ZIMBABWE

CHIRAWU-MUGOMBA J

Harare, 2, 9, 10, 11 February 2026

T. MPOFU, for the applicant

C. MANYEZA, for the first respondent

E. MUBAIWA, for the second respondent

COURT APPLICATION FOR REVIEW IN TERMS OF SECTION 4 OF THE ADMINISTRATIVE JUSTICE ACT

CHIRAWU-MUGOMBA J: The roots of this matter lie in the withdrawal of an offer letter previously granted to the applicant by the first respondent. This offer was withdrawn and the first respondent offered the same piece of land to the second respondent.

The applicant seeks before this court the following order:-

1. That the application for review be and is hereby granted.
2. That the first respondent's decision to withdraw applicant's offer letter dated 4 November 2011, be and is hereby set aside.

3. That the first respondent's decision dated 4 November 20111 to hand over Buckland Estate measuring 280 hectares to the second respondent be and is hereby set aside.

4. The respondent shall bear the costs of suit should they oppose the application.

In the notice of the application, the grounds that appear *ex facie* are as follows:-

a. The first respondent did not give notice of his intention to withdraw the offer letter issued to the applicant.

b. The first respondent did not give reasons for his decision to withdraw the offer letter issued to the applicant.

c. The first respondent did not give due consideration to the relevant and weighty factors before arriving at a decision to withdraw the applicant's offer letter.

Let me hasten to add that after hearing submissions on the late filing of heads of argument by the second respondent, I gave an order that the second respondent should file an application for upliftment of bar within seven days. The applicant however abandoned the ruling and the matter proceeded to the merits.

In expanding on the grounds for review, the applicant avers that on the 30th of September 2002, a company in which she is one of the majority shareholders, namely Tiltrac Investments (pvt) Limited (the company) purchased a certain piece of land, namely a 40 -hectare portion of Buckland Estate from Craighill Estate (the farm). Upon purchase, through the company she took occupation and immediately commenced farming operations including flower production for export and horticulture for the local market. However the farm was acquired compulsorily by the state for agricultural resettlement purposes. This was despite the fact that the farm had been acquired by indigenous farmers. After the acquisition was challenged, an offer letter was issued in favour of the applicant for the whole farm measuring 280.00 hectares. Applicant only remained in occupation of 40 hectares whilst the rest of the farm was taken up by indigenous farmers. On the 4th of November 2011, the applicant was issued with a letter of withdrawal of the offer without following due

process. The first respondent proceeded to issue the second respondent with an offer letter for the farm. In so acting the first respondent violated both the administrative and constitutional laws of the land in that she was not given notice to withdraw the offer. She was denied the opportunity to make representations on the cancellation. The first respondent did not provide reasons for the cancellation. The first respondent failed to take into account pertinent factors in particular that the farm was owned by an indigenous person and it is not justifiable to give it to another indigenous person. The second respondent already owns other farms and the applicant through the company had been in occupation since 2002.

The first respondent opposes the application and makes the following averments. The agreement of sale over the farm is a nullity because it has already been acquired hence no sale could have been concluded on state land. Additionally, no subdivision permit has been attached to substantiate the agreement as required in terms of the Regional and Town Planning Act. The applicant by reference to indigenous farmers occupying the land is attempting to circumvent the land reform programme. The first respondent is legally empowered to acquire land within Zimbabwe and can deviate from any legislation including the Administrative Justice Act [Chapter *10:28*] " the Act". The land was thus legally possessed. The offer was legally withdrawn following due process. The applicant never at any point requested reasons for the decision as is expected under the act. She should only institute proceedings after reasons have been furnished. The applicant was given notice to make representations but failed to do so. She has been sitting on this matter for twelve years only to resurface in 2025. The applicant accepted the offer letter and in so doing acknowledged and accepted the necessary right to withdrawing of the offer letter.

In opposing the application, the second respondent makes the following averments. That the applicant is not being honest with the court in its averments relating to the agreement of sale. There are no documents linking her to the company. The agreement of sale is invalid for lack of compliance with the Regional and Town Planning Act , [Chapter *29:12*]. There is no proof that the farm is owned by indigenous farmers. The first respondent has a right to withdraw the offer as he

did and he also had a right to offer the farm to the second respondent. The second respondent does not own multiple farms as alleged. If the applicant was the beneficial owner, she ought to have acted in terms of S.I 62/2020.

In the heads of argument the applicant makes the following submissions. It is not contested that the first respondent has a right to withdraw an offer. However, the contestation revolves around the fact that the state must act in terms of the law. An administrative authority must comply with the statutory standard – *Maqele and ors vs. Vice Chancellor Bhebhe N.O and ors,* HB-129-16.and *Paweni v Minister of State Security and anor,* 1984(1) ZLR 236. The actions of the first respondent fail to measure up to these standards. The actions of the first respondent were arbitrary – *Nyambirai v NSSA and anor,* 1995(2) ZLR 1. No notice of withdrawal of the offer letter was given to applicant and neither was she warned that her rights were in peril. She simply woke up without an offer letter and was required to cease all operations. In *Mukwaira v Minister of Lands, Agriculture, Fisheries and Rural Resettlement,* SC-15-24, it was held that notice must be given before any offer letter can be withdrawn. Applicant does not know what induced the withdrawal. At the heart of the issue is the right to be heard as the affected party- *Sigudu v Minister of Lands and anor,* HH-11-13. Notice of impending action is a *sine qua non* for the exercise of administrative functions. The maxim *audi alteram partem* rule underscores the fact that a person affected must be given the right to be heard. The applicant was simply not heard – *Masunda v Minister of State and anor,* HB-75-06. The withdrawal also falters on the basis that it is not accompanied by reasons. The furnishing of reasons is an integral part of decision making – *Fox and Carney (pvt) Limited vs Sibindi* , 1989(2) ZLR 173 and *PG Industries (Zimbabwe) Limited v Bvekerwa and ors,* SC -53-16. This was expounded fully in *Mukwaira v Minister of Lands, Agriculture. Water, Fisheries and Rural resettlement,* SC-15-24. The first respondent has not given any reasons. There is no evidence that the first respondent considered pertinent factors in arriving at the decision. In making a decision, an administrative authority is duty bound to consider all factors. The other factor to consider is that there is no rationality for taking away land from one indigenous person and giving it to another indigenous person. The applicant was not found in breach of any of the conditions on the offer

letter. At the hearing Advocate *Mpofu* expanded and emphasised the following. He made reference to the case of *Dhlamini and ors vs. Minister of Lands, agriculture, water and rural resettlement,* HB-85-25 as the authority for the proposition that what matters is the decision of the Minister. The application is based on the principle of legality. The decision was arbitrary and not in accordance with the law and it ought to be vacated. On notice, he submitted that the applicant was just advised that a decision had been made. A position had been taken and communicated to her. The immediate effect was that she should cease all operations. It is clear that nothing was indicated as to why such a decision was taken. That is not a rationale exercise of functions. There is a duty upon the first respondent to give reasons. The assertion that the applicant ought to have sought reasons is not justifiable. Reasons should have been given upon a hearing and a decision being made. The first respondent is attempting to craft reasons retrospectively. The withdrawal must have been done within the confines of the offer letter relating to breach and necessity justifying the withdrawal. No facts relating to these were explained. The withdrawal is not in terms of the offer letter as alleged. What the applicant received was communication of a position already taken. Even an unlawful position taken takes effect, Any representations made do not matter. The pursuance of domestic remedies can only be done if they result in tangible relief. In *casu*, there is no authority higher than the first respondent who had already made a decision.

Per *contra,* the first respondent located the dispute in three legal issues. (1) Whether or not the applicant has exhausted administrative remedies? (2) Whether or not the first respondent acted procedurally in withdrawing the applicant's offer and whether or not the relief sought is enforceable?. In expanding these, Ms. *Manyeza* for the first respondent made the following submissions. That it is a common position of the law that the first respondent is empowered to withdraw an offer letter previously issued as guided by the Act. The first respondent acted in keeping with s3(2) that requires giving of adequate notice of the nature and purpose of the proposed action, a reasonable opportunity to make adequate representations and adequate notice of any right or review or appeal where applicable. Section 3(3) of the act permits a departure from the requirements in s3(2) on specific grounds.

The first respondent acted within the confines of s3(3)(b) that gives seven days to an affected party to make representations. The letter was an opportunity for the applicant to be heard in keeping with the *audi alteram partem* rule. There is nothing on record to show that the applicant made representations. The applicant did not take up this opportunity at her own peril. A litigant must first see the administrative process to its logical conclusion before engaging courts - *Nyasha vs Chiredzi Wildlife Investments and Minister of Lands and Rural Resettlements,* HH-68-18. The applicant has approached the court fourteen years for a review of the first respondent's decision. She has not allowed for the first respondent to see its administrative role come to an end. She must commence by engaging the administrative authority before approaching the courts. She has relief in terms of s6 that addresses the furnishing of reasons upon failure by a respondent to provide such. The relief sought by the applicant infringes on the rights of others. Lastly, the court's role is not to substitute its own discretion for that of a public authority. At the hearing, At the hearing, Ms. *Manyeza* made the following submissions. That the first respondent has discretion and had the applicant made submissions, these would have been considered.

The second respondent on the other hand locates the dispute on the sole question of whether or not the application ought to be granted. It submitted that where a statute is silent on the time frame for a review, it should be brought within a reasonable time frame unlike the applicant who has taken twelve years to challenge an administrative decision. This time is unreasonable and prejudices the rights of third parties. The applicant has not exhausted domestic remedies. She failed to make representations when called upon to do so. She did not request for reasons and she did not seek a *mandamus* to compel the respondent to give her reasons. The principle of exhaustion of domestic remedies is set – *Chiduku v Chiduku,* sc-56-24. It was held in that case that where domestic remedies have not been explored, courts are slow to intervene. By failing to request for reasons, the applicant has waived her rights to challenge the regularity or other wise of the administrative decision. In *Mugari v Chinhoyi University of Technology,* SC-126-23, it was held that the right to be heard is not an absolute immutable rule of law. More poignantly it was

held that if a person is offered the chance to exercise one of the rights recognised as being part of the principles of natural justice and they decline to avail themselves of this right, they have waived their right. Applicant should seek reasons or apply to compel reasons – *Ex Constable Kamhesi vs Commissioner General of Police and anor,* HH-377-25. The second respondent has occupied the farm for over a decade and has made investments and now has a legitimate expectation that it has a right to use the land. The applicant has also failed to prove the legitimacy of the memorandum of agreement of sale of 2002 since this is unsupported on account of lack of a subdivision permit. Advocate *Mubaiwa* at the hearing made the following submissions. That there are two independent decisions involved in the matter. The first one is the decision to withdraw the offer letter and the second is the decision to give an offer letter to the second respondent. The applicant takes a simplistic approach that if the decision to withdraw the offer letter is set aside, it means that the offer letter to the second respondent is null and void. The legal position prevailing is that administrative decisions are presumed to be valid- *ECONET WIRELESS (pvt) Limited vs. Minister of Labour,* SC-31-16. It was held in that matter that an administrative decision is valid and of consequence. This is critical with regards to the rights bestowed on the second respondent by the first respondent. Section 3 of the Act is not applicable. The administrative decision of granting the offer letter to the second respondent has been standing for twelve years and the second respondent is the holder of rights. It has arranged its affairs on the basis of those rights. The second respondent has made improvements. The applicant is seeking to craft a new case in her answering affidavit. She cannot claim to be in occupation because once the offer to her was withdrawn, she lost the right of occupation. On the allegation that the land cannot be taken from one indigenous farmer to the other, in *TIBC Investments (pvt) Limited and anor vs. Magenje and ors,* SC-13-18, it was held that the law knows no colour when it comes to fictitious persons. See also *-Naval Phase Farming (pvt) Limited and anor vs. Minister of Lands and Rural Resettlement and ors,* SC-50-18. There is no proof that the second respondent owns multiple farms. After twelve years, the offer cannot be taken away from the second respondent and returned to the applicant.

In response, Advocate *Mpofu* submitted as follows. Public officials are expected to first explain that they want to act in a certain manner and then give a time frame to respond and answer to what has been expressed. In *casu,* this was not done. The applicant was given seven days to respond without knowing what exactly she was responding to. Regarding the second respondent's contentions, what is in issue is the unlawful withdrawal of the offer letter. Once the decision is set aside, the first respondent has nothing to give to the second respondent. The second respondent has not put before the court evidence of what it has done on the farm. There is no counter application for the improvements effected. With regard to the *TBIC* case, there is no doubt that while the second respondent is a corporate entity, its beneficial owners are indigenous persons.

The dispute is not between the applicant and the second respondent. I concur with the submissions by Advocate *Mpofu* that the court need not detain itself with the assertions of the second respondent on improvements effected and how it has been in occupation for twelve years. It is accepted by all parties that the first respondent has a right to withdraw an offer letter. As I see it the applicant's contention is the manner in which this was done. Contrary to the assertion by the second respondent, SI 62 of 2020 does not apply because this is not about compensation.

In my view, the root of the matter lies in answering the grounds for review as propagated by the applicant. These become the issues for consideration as follows:-

a. Whether or not the first respondent gave notice to the applicant for the withdrawal?

b. Whether or not the first respondent gave reasons to the applicant and the implications thereof?

c. Whether or not the first respondent gave due weight to pertinent factors before arriving at the decision.

I applaud the legal practitioners for their sound heads of argument and submissions in court. These went a long way in aiding the court to make a decision.

Section 3 of the Act sets out the framework as follows.

Duty of administrative authority

(1) An administrative authority which has the responsibility or power to take any administrative action which may affect the rights, interests or legitimate expectations of any person shall—

(a) act lawfully, reasonably and in a fair manner; and

(b) act within the relevant period specified by law or, if there is no such specified period, within a reasonable period after being requested to take the action by the person concerned; and

(c) where it has taken the action, supply written reasons therefor within the relevant period specified by law or, if there is no such specified period, within a reasonable period after being requested to supply reasons by the person concerned.

(2) In order for an administrative action to be taken in a fair manner as required by paragraph (a) of subsection (1), an administrative authority shall give a person referred to in subsection (1)—

(a) adequate notice of the nature and purpose of the proposed action; and

(b) a reasonable opportunity to make adequate representations; and

(c) adequate notice of any right of review or appeal, where applicable.

(3) An administrative authority may depart from any of the requirements referred to in subsection (1) or (2) if—

(a) the enactment under which the decision is made expressly provides for any of the matters referred to in those subsections so as to vary or exclude any of their requirements; or

(b) the departure is, under the circumstances, reasonable and justifiable, in which case the administrative authority shall take into account all relevant matters, including—

(i) the objects of the applicable enactment or rule of common law;

(ii) the likely effect of its action;

(iii) the urgency of the matter or the urgency of acting thereon;

(iv) the need to promote efficient administration and good governance;

(v) the need to promote the public interest.

5. Determining factors

For the purposes of determining whether or not an administrative authority has failed to comply with section *three* the High Court may have regard to whether or not—

(a) the administrative authority has jurisdiction in the matter;

(b) the enactment under which the action has been taken authorises the action;

(c) a material error of law or fact has occurred;

(d) a power has been exercised for a purpose other than that for which the power was conferred;

(e) fraud, corruption or favour or disfavour was shown to any person on irrational grounds;

(f) bad faith has been exercised;

(g) a discretionary power has been improperly exercised at the direction, behest or request of another person;

(h) a discretionary power has been exercised in accordance with a direction as to policy without regard to the merits of the case in question;

(i) a power has been exercised in a manner which constitutes an abuse of that power;

(j) the action taken is so unreasonable that no reasonable person would have taken it;

(k) there is any evidence or other material which provides a reasonable or rational foundation to justify the action taken;

(l) an irrelevant matter has been taken into account;

(m) a relevant matter has not been taken into account;

(n) a breach of the rules of natural justice, where applicable, has occurred;

(o) the procedures specified by law have been followed;

(p) any departure from the requirements of section *three* is, in the circumstances, reasonable and justifiable.

6 Application for and issue of order to supply reasons

(1) Subject to this Act and any other enactment, any person—

(a) whose rights, interests or legitimate expectations are materially and adversely affected by any administrative action; or

(b) who is entitled to apply for relief in terms of section *four*;

and who is aggrieved by the failure of an administrative authority to supply written reasons for the action concerned within—

(i) the period specified in the relevant enactment; or

(ii) in the absence of any such specified period, a reasonable period after a request for such reasons has been made;

may apply to the High Court for an order compelling the administrative authority to supply reasons.

(2) Upon an application being made to it in terms of subsection (1) the High Court may, if it is satisfied that there has been a failure by the administrative authority concerned to supply any or adequate reasons for an administrative action, issue an order directing the administrative authority to supply written reasons to the applicant within such period as may be specified by the High Court.

(3) Where an administrative authority fails to comply with an order in terms of subsection (2), it shall be presumed, in the absence of proof to the contrary, that the administrative action concerned constituted an improper exercise of the power conferred by the relevant law or empowering provision.

(4) The High Court may at any time vary or revoke an order made in terms of subsection (2).

The letter of withdrawal issued to the applicant by the first respondent which reads as follows is the key.

Re: Withdrawal of land offer under the land reform and resettlement programme (Model A2, PHASE 11)

Please be advised that the Minister of Lands and Rural resettlement is withdrawing the offer of land made in respect of subdivision WHOLE of Buckland Estate Glen of Glen Forest Farm in the Goromonzi District of Mashonaland East Province. The withdrawal is in terms of the conditions of the offer attached to the offer letter to you of 26-Jan-09.

You are therefore notified of the immediate withdrawal of the offer of subdivision whole of Buckland Estate Glen Forest of Glen Forest measuring 280.00 hectares. You are required forthwith to cease all or any operations that you may have commenced thereon and immediately vacate the said piece of land.

If you wish to make any representations on this issue please do so in writing within 7 days of receipt of this notification and please direct your correspondence to the Minister.

Hon. H.M. Murerwa (M.P)

Minister of lands and rural settlement.

On the face of it the letter seems to be arbitrary as contended by the applicant. However, this is juxtaposed with the ending of the letter that gave the applicant a period of seven days within which to make representations. Applicant did not make any representations. In other words, the first two paragraphs were 'frozen' pending receipt of representations from the applicant. She cannot therefore claim that the decision was arbitrary and that she was not given notice. She was given a chance to give her side very much in keeping with the *audi alteram partem* rule. She chose to be silent. The seven days constituted the notice period. I distinguish this matter from that of *Dhlamini* (supra) in which the learned Judge Ndlovu J held as follows,

> "The rule of law requires that the exercise of public power by State functionaries should not be arbitrary. Decisions must be rationally related to the purpose for which the power was given; otherwise, they are, in effect, arbitrary. To pass constitutional scrutiny, the exercise of public power by government officials must, at the very least, comply with this requirement. If it does not, it falls short of the standards demanded by our law. *See Nyambirai* **v** *National Social Security Authority and Anor* 1995 (2) ZLR I SC.
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> *Pharmaceutical Manufacturers Association of SA and Others, In Re. Ex Parte Application of President of the RSA and Others* 2000 (3) BCLR 241 (CC).
>
> It has not been denied that, in acquiring the farm as he did, ***the Minister did not solicit input or representation from the interested parties****".* (my emphasis)

I now turn to the reasons for the decision. The letter stated unequivocally that the withdrawal was in terms of the conditions of offer attached in the offer letter of the 26th of January 2009. The applicant cannot therefore claim that she was not given reasons. Even assuming that she was not given reasons, she still had a remedy as submitted by the first and second respondent's counsels through invoking the procedure in section 6 of the Act. In the absence of reasons, she ought to have sought an order of this court to compel delivery of the reasons. She only 'woke' up literally fourteen years down the line and claimed that she was not furnished with reasons. As matters stand, she has come to court on a wing and a prayer. She simply failed to exhaust the domestic remedies available to her.

Turning to the non-taking of pertinent factors into account in the decision, not only did the applicant waive her right to be heard but the immediate question that arises is which pertinent factors from one who never made any written submissions to the first respondent. At the hearing Advocate *Mpofu* submitted that she refrained from making submissions because it was a foregone conclusion that the first respondent had made up its mind to withdraw the offer. In my view that argument does not hold water. The applicant had a chance to put forward reasons why the offer should not be withdrawn including the assertion that the farm was being utilised by indigenous farmers, a fact that she seems to be emphasising over and over. Even if the second respondent was not going to take heed, at least these would be on paper and applicant could attack the decision on the basis of irrationality. In my view, there is no irrationality when applicant never put anything before the first respondent and she now wants the court to speculate as to what she might have stated in her submissions.

As guided by s5 of the act, I do not find that the first respondent has breached these requirements in any manner whatsoever.

The application for review has no merit and ought to be dismissed. I note that the applicant has asked for costs on the basis that the matter is not opposed. I have repeatedly stated that this carrot and stick approach is not proper. Every litigant has a right to defend themselves. Ironically the applicant has cried foul over the fact that she was denied the right to be heard and yet she seeks that the respondents pay costs on the basis of their opposition. Applicant at the discretion of the court must pay costs.

DISPOSITION

1. The application be and is hereby dismissed.
2. The applicant shall pay costs.

Munangati and Associates, applicants' legal practitioners

Civil Division of the Attorney-Generals Office, first respondent's legal practitioners

Chiwarumombe Legal Practice, second respondent's legal practitioners.